OFFERING MEMORANDUM

Calloway Data Campus | Albuquerque, NM

Property	Calloway Data Campus
Location	5452 Church Way, Albuquerque, NM 19201
Property Type	Data Center
Size	182,997 SF
Year Built	1979
Offering	Unpriced - Offers Due September 21, 2022

Business Plan Progress

Projected levered IRR is 12.0% with an equity multiple of 1.19x over the hold period. Carrier-neutral meet-me room supports multiple fiber providers. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. The facility is a purpose-built data center with 44 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Distributions to investors for the quarter were paid at an annualized rate of 7.1% on contributed capital.

Carrier-neutral meet-me room supports multiple fiber providers. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. The business plan contemplates a hold period of 10 years with disposition upon achievement of target returns. Distributions to investors for the quarter were paid at an annualized rate of 5.7% on contributed capital. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market.

Submarket Analysis

The facility is a purpose-built data center with 39 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. The Albuquerque Data Center market has experienced absorption of 4100 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 9.7% population growth over the last five years. Market vacancy for comparable Data Center product stands at 7.9%, down from 3.3% two years ago. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply.

Investor demand for Data Center assets in Albuquerque remains strong with recent trades at capitalization rates between 7.95% and 7.95%. Carrier-neutral meet-me room supports multiple fiber providers. Rent growth in the submarket has averaged 7.6% annually over the past 6 years. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Median household income within a 4-mile radius of the property is approximately $380,000 and has grown 10.0% annually.

Risk Considerations

On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. The business plan contemplates a hold period of 11 years with disposition upon achievement of target returns. Leasing velocity improved during the period and management expects further upward pressure on in-place rents.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Investor Distributions

Leasing velocity improved during the period and management expects further upward pressure on in-place rents. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Distributions to investors for the quarter were paid at an annualized rate of 6.9% on contributed capital. Carrier-neutral meet-me room supports multiple fiber providers.

Projected levered IRR is 10.2% with an equity multiple of 1.37x over the hold period. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. The business plan contemplates a hold period of 5 years with disposition upon achievement of target returns. Distributions to investors for the quarter were paid at an annualized rate of 3.8% on contributed capital. Carrier-neutral meet-me room supports multiple fiber providers.

Submarket Analysis

Rent growth in the submarket has averaged 8.0% annually over the past 3 years. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. The facility is a purpose-built data center with 45 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 5.6% population growth over the last five years. Market vacancy for comparable Data Center product stands at 5.2%, down from 3.5% two years ago.

Market vacancy for comparable Data Center product stands at 10.0%, down from 5.3% two years ago. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. Median household income within a 6-mile radius of the property is approximately $223,000 and has grown 12.1% annually. Investor demand for Data Center assets in Albuquerque remains strong with recent trades at capitalization rates between 5.76% and 5.76%. Carrier-neutral meet-me room supports multiple fiber providers.

Investment Overview

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Distributions to investors for the quarter were paid at an annualized rate of 3.7% on contributed capital. The facility is a purpose-built data center with 22 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. Leasing velocity improved during the period and management expects further upward pressure on in-place rents.

Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Projected levered IRR is 7.1% with an equity multiple of 1.9x over the hold period. Distributions to investors for the quarter were paid at an annualized rate of 5.0% on contributed capital. Leasing velocity improved during the period and management expects further upward pressure on in-place rents. The facility is a purpose-built data center with 31 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds.

Demographics and Employment

Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 10.3% population growth over the last five years. The facility is a purpose-built data center with 24 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Carrier-neutral meet-me room supports multiple fiber providers. Median household income within a 1-mile radius of the property is approximately $29,000 and has grown 7.4% annually. Rent growth in the submarket has averaged 4.0% annually over the past 3 years.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Sales Comparison Data

Comparable	Location	Sale Date	Size	Price	$/Unit or S	Cap Rate	Yr Built
Brookside Data Campus	Birmingham, AL	12/09/2023	6	$116,629,501	$637	6.97%	2016
Jasper Technology Campus	Oklahoma City, O	02/15/2024	13	$167,261,147	$914	7.63%	2015
Garnet Data Campus	Memphis, TN	10/18/2022	13	$183,872,339	$1,005	6.06%	1980
Dover Technology Campus	Kansas City, MO	09/20/2024	12	$165,295,521	$903	6.51%	2003
Everett Data Campus	Albany, NY	07/19/2024	9	$156,410,407	$855	5.32%	1998
Sable Data Center	Atlanta, GA	01/31/2023	12	$131,166,242	$717	6.21%	1983
Crestline Data Center	Boise, ID	04/13/2023	5	$106,192,714	$580	7.20%	1993
Keystone Technology Campus	Hartford, CT	04/15/2023	13	$156,124,342	$853	6.95%	1965
Tidewater Data Center	Charlotte, NC	06/24/2025	11	$187,239,144	$1,023	6.78%	2009
Yarrow Data Center	Salt Lake City,	03/14/2024	6	$157,646,955	$861	6.52%	1999
Onyx Data Campus	San Antonio, TX	03/21/2025	10	$132,248,966	$723	6.04%	2017
Dunmore Data Campus	Salt Lake City,	04/25/2025	10	$96,299,753	$526	7.16%	1992
Osprey Data Center	Tempe, AZ	01/05/2024	11	$207,689,257	$1,135	6.12%	2000
Pinecrest Technology Campu	Boston, MA	10/20/2025	5	$105,898,819	$579	6.74%	1974
Driftwood Data Campus	Richmond, VA	09/12/2024	7	$106,619,921	$583	8.06%	2006
Nautilus Data Center	Houston, TX	06/16/2026	9	$75,097,228	$410	6.23%	2023
Wexford Data Campus	Memphis, TN	12/26/2023	11	$154,452,242	$844	7.14%	1970
Quarry Data Campus	Madison, WI	04/30/2026	13	$102,106,625	$558	8.08%	1987
Keystone Data Center	Sacramento, CA	07/28/2026	8	$200,550,904	$1,096	7.91%	2009
Brookside Data Campus	Richmond, VA	10/16/2022	12	$199,367,255	$1,089	5.49%	1979
Alder Data Center	Detroit, MI	10/17/2023	5	$172,912,262	$945	6.07%	2012
Onyx Data Center	Riverside, CA	04/14/2026	6	$214,681,996	$1,173	6.85%	1984
Verde Technology Campus	Dallas, TX	04/09/2026	12	$131,176,534	$717	7.36%	2022
Nautilus Data Center	Aurora, CO	04/05/2023	9	$176,338,868	$964	5.71%	1990
Laurel Technology Campus	Austin, TX	07/30/2025	6	$97,729,182	$534	6.63%	1983
Orchard Data Campus	Newark, NJ	07/09/2025	5	$128,518,851	$702	6.41%	1976
Kestrel Data Center	Richmond, VA	05/11/2024	7	$176,181,854	$963	5.01%	2003
Thornton Technology Campus	Baltimore, MD	04/05/2022	12	$77,325,763	$423	8.07%	1982
Raven Data Campus	Nashville, TN	03/11/2026	12	$133,915,830	$732	5.36%	1997
Newport Data Center	Richmond, VA	06/09/2024	5	$182,712,978	$998	6.42%	2004
Thornton Data Center	Grand Rapids, MI	07/02/2024	8	$209,860,698	$1,147	5.86%	1992
Verde Data Campus	Columbus, OH	12/21/2025	5	$174,007,775	$951	5.41%	2010
Falcon Data Center	Jacksonville, FL	03/17/2023	10	$163,901,820	$896	6.34%	1968
Redwood Data Center	Newark, NJ	09/04/2023	13	$89,616,384	$490	8.02%	1977
Newport Data Campus	Aurora, CO	10/27/2022	10	$112,889,573	$617	7.67%	1976
Onyx Data Campus	Nashville, TN	09/12/2023	11	$192,036,875	$1,049	8.12%	2010
Cedar Data Campus	St. Louis, MO	10/05/2024	11	$98,059,326	$536	7.04%	1984
Hawthorne Technology Campu	Omaha, NE	08/18/2023	7	$198,199,871	$1,083	6.40%	2005
Lantern Technology Campus	Birmingham, AL	01/07/2022	6	$152,667,531	$834	5.55%	2020
Garnet Data Center	Cincinnati, OH	04/23/2024	7	$213,271,784	$1,165	5.05%	1995
Bluestone Data Campus	Albuquerque, NM	05/16/2025	9	$179,961,110	$983	5.11%	2001

Report generated 09/21/2022. Figures are unaudited and subject to change.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Improvements Description

The facility is a purpose-built data center with 31 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. Common area interiors have been refreshed within the last 3 years and are in average to good condition. The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation. Carrier-neutral meet-me room supports multiple fiber providers. Life-safety systems include a fully sprinklered building, addressable fire alarm panel and emergency lighting.

The facility is a purpose-built data center with 24 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. Carrier-neutral meet-me room supports multiple fiber providers. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation.

Financial Analysis

A reserve for replacements of $250 per unit has been underwritten in the cash flow below net operating income. Debt service coverage ratio was 6.14x on a trailing basis against a covenant minimum of 1.20x. The facility is a purpose-built data center with 17 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Effective gross income for the trailing period was $268,000, representing a 5.8% increase over the prior year. The going-in capitalization rate of 5.15% reflects the in-place income and the stabilized occupancy assumption.

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. The facility is a purpose-built data center with 41 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. A reserve for replacements of $250 per unit has been underwritten in the cash flow below net operating income. Debt service coverage ratio was 5.97x on a trailing basis against a covenant minimum of 1.20x. Operating expenses totaled $280,000 or approximately 15.91 per square foot, with real estate taxes representing the largest line item. Carrier-neutral meet-me room supports multiple fiber providers.

Construction Details

Calloway Data Campus was originally constructed in 1979 and consists of 182,997 SF in a building of 45 stories. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Carrier-neutral meet-me room supports multiple fiber providers. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The facility is a purpose-built data center with 15 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds.

The facility is a purpose-built data center with 42 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Calloway Data Campus was originally constructed in 1979 and consists of 182,997 SF in a building of 26 stories. Life-safety systems include a fully sprinklered building, addressable fire alarm panel and emergency lighting. The roof is a 37-year membrane system with an estimated remaining useful life of 4 years. Common area interiors have been refreshed within the last 5 years and are in average to good condition.

Income and Expense Review

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. The facility is a purpose-built data center with 30 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. The going-in capitalization rate of 7.73% reflects the in-place income and the stabilized occupancy assumption. Management fees are calculated at 4.6% of collected revenue and are included in operating expenses.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Rent Comparables

Comparable	Distance	Yr Built	Space Type	Asking Rent	Occupancy	Concessions
Ashford Data Campus	3.5 mi	1982	Bay	$156.94	90.1%	$500
Glenview Data Campus	4.7 mi	1996	Unit	$183.43	86.7%	None
Sable Data Campus	4.3 mi	1974	Inline	$151.76	90.3%	None
Heritage Data Center	4.7 mi	1997	Bay	$198.02	92.8%	None
Cobalt Technology Campus	1.3 mi	1982	Suite	$153.91	96.2%	None
Lakeshore Technology Campus	2.4 mi	2001	1BR	$149.15	91.5%	1 mo. free
Crestline Technology Campus	4.2 mi	1986	Unit	$187.30	91.9%	None
Redwood Data Center	4.9 mi	1990	Studio	$172.82	92.6%	None
Copper Data Center	0.4 mi	2011	Bay	$201.46	88.6%	None
Aspen Technology Campus	0.6 mi	1997	Bay	$173.94	89.9%	None
Keystone Data Center	3.3 mi	1983	1BR	$167.28	97.2%	1 mo. free
Newport Data Campus	4.5 mi	1982	2BR	$191.82	94.7%	None
Wexford Technology Campus	3.8 mi	2018	Studio	$183.27	96.6%	None
Quarry Technology Campus	3.0 mi	1998	Bay	$162.67	88.2%	None
Osprey Data Center	3.5 mi	1993	Bay	$163.71	88.9%	None
Laurel Data Campus	4.4 mi	1981	Studio	$156.34	88.8%	None
Driftwood Data Center	1.6 mi	2000	Studio	$170.79	93.0%	None
Lantern Data Center	0.4 mi	2009	Suite	$203.72	89.5%	1 mo. free
Stonebridge Data Center	2.1 mi	1976	Unit	$185.75	87.9%	None
Aspen Data Campus	3.2 mi	2019	2BR	$194.18	86.9%	1 mo. free
Nautilus Technology Campus	0.7 mi	2017	Inline	$169.55	97.4%	None
Birchwood Data Center	2.4 mi	1978	Studio	$192.07	90.2%	None
Vista Data Center	3.6 mi	1987	Unit	$190.32	92.7%	1 mo. free
Riverbend Data Center	1.2 mi	1971	1BR	$186.85	91.6%	None
Meridian Technology Campus	2.4 mi	1983	Unit	$182.37	96.0%	None
Pinecrest Technology Campus	3.5 mi	1973	Studio	$208.93	91.9%	$500
Dover Technology Campus	2.3 mi	1994	Suite	$195.84	88.3%	None
Birchwood Data Center	4.2 mi	1980	1BR	$181.68	86.1%	$500
Ashford Data Campus	0.8 mi	2020	2BR	$209.87	88.9%	None
Stonebridge Data Campus	1.2 mi	2022	Unit	$173.41	93.4%	None
Summit Data Campus	1.2 mi	2002	Suite	$172.28	88.2%	$500
Bluestone Technology Campus	1.1 mi	1983	Inline	$163.67	93.3%	$500
Orchard Technology Campus	3.8 mi	1992	1BR	$208.25	87.1%	None
Heritage Data Campus	5.0 mi	2015	1BR	$185.25	95.2%	$500
Verde Data Campus	3.4 mi	2002	Unit	$206.90	89.6%	$500
Highland Data Center	4.5 mi	2001	Bay	$176.93	92.3%	None
Summit Technology Campus	2.4 mi	1983	Inline	$192.05	92.4%	$500
Yarrow Data Center	2.4 mi	2023	Bay	$178.38	89.9%	None
Meridian Data Center	4.1 mi	1985	Bay	$180.82	89.6%	$500
Cedar Data Campus	2.4 mi	2018	Inline	$164.65	89.9%	$500
Eastlake Technology Campus	1.5 mi	2009	Bay	$166.24	90.7%	None
Copper Data Center	2.0 mi	1999	Studio	$192.31	95.7%	1 mo. free
Northgate Technology Campus	2.7 mi	1977	Suite	$168.95	87.6%	1 mo. free

Report generated 09/21/2022. Figures are unaudited and subject to change.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Property Operations

Collections for the period were 93.2% of billed charges, with bad debt of 5.3% of gross potential income. The manager completes a monthly walk of the property and submits a variance report to the owner by the 16th business day. Marketing efforts include digital listings, signage, broker outreach and a resident referral program. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Service requests are tracked through a work-order system with an average completion time of 22 hours. The facility is a purpose-built data center with 37 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds.

Preventive maintenance schedules for HVAC, elevators and life-safety systems were completed on time during the period. Collections for the period were 91.6% of billed charges, with bad debt of 6.2% of gross potential income. The manager completes a monthly walk of the property and submits a variance report to the owner by the 8th business day. Carrier-neutral meet-me room supports multiple fiber providers. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost.

Supply and Demand

Median household income within a 6-mile radius of the property is approximately $316,000 and has grown 5.1% annually. Investor demand for Data Center assets in Albuquerque remains strong with recent trades at capitalization rates between 7.22% and 7.22%. Rent growth in the submarket has averaged 3.5% annually over the past 5 years. Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 12.1% population growth over the last five years. The Albuquerque Data Center market has experienced absorption of 900 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries.

New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Investor demand for Data Center assets in Albuquerque remains strong with recent trades at capitalization rates between 5.21% and 5.21%. Rent growth in the submarket has averaged 7.1% annually over the past 7 years.

Leasing and Marketing

Marketing efforts include digital listings, signage, broker outreach and a resident referral program. On-site staffing consists of a property manager, assistant manager, maintenance supervisor and 44 additional team members. The manager completes a monthly walk of the property and submits a variance report to the owner by the 48th business day. The facility is a purpose-built data center with 39 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds.

The facility is a purpose-built data center with 43 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. On-site staffing consists of a property manager, assistant manager, maintenance supervisor and 29 additional team members. Preventive maintenance schedules for HVAC, elevators and life-safety systems were completed on time during the period. Collections for the period were 94.5% of billed charges, with bad debt of 4.8% of gross potential income. Service requests are tracked through a work-order system with an average completion time of 7 hours.

Submarket Analysis

The facility is a purpose-built data center with 4 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 3.1% population growth over the last five years. Median household income within a 8-mile radius of the property is approximately $123,000 and has grown 10.6% annually. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Rent growth in the submarket has averaged 3.9% annually over the past 3 years.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Investment Overview

The facility is a purpose-built data center with 17 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Projected levered IRR is 8.8% with an equity multiple of 1.27x over the hold period. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. The business plan contemplates a hold period of 5 years with disposition upon achievement of target returns. Distributions to investors for the quarter were paid at an annualized rate of 8.0% on contributed capital.

The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Distributions to investors for the quarter were paid at an annualized rate of 7.4% on contributed capital. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The facility is a purpose-built data center with 22 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds.

Submarket Analysis

Market vacancy for comparable Data Center product stands at 13.5%, down from 4.4% two years ago. Investor demand for Data Center assets in Albuquerque remains strong with recent trades at capitalization rates between 7.13% and 7.13%. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Median household income within a 7-mile radius of the property is approximately $173,000 and has grown 10.5% annually. The Albuquerque Data Center market has experienced absorption of 1000 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply.

The facility is a purpose-built data center with 40 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Market vacancy for comparable Data Center product stands at 6.2%, down from 5.2% two years ago. Investor demand for Data Center assets in Albuquerque remains strong with recent trades at capitalization rates between 7.64% and 7.64%. Rent growth in the submarket has averaged 7.9% annually over the past 3 years. The Albuquerque Data Center market has experienced absorption of 2800 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost.

Risk Considerations

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. The facility is a purpose-built data center with 39 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. The business plan contemplates a hold period of 4 years with disposition upon achievement of target returns. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Distributions to investors for the quarter were paid at an annualized rate of 6.4% on contributed capital. Leasing velocity improved during the period and management expects further upward pressure on in-place rents.

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Leasing velocity improved during the period and management expects further upward pressure on in-place rents. Distributions to investors for the quarter were paid at an annualized rate of 7.5% on contributed capital. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. The facility is a purpose-built data center with 26 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds.

Supply and Demand

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Sales Comparison Data

Comparable	Location	Sale Date	Size	Price	$/Unit or S	Cap Rate	Yr Built
Dover Data Campus	Boston, MA	11/19/2025	6	$194,404,075	$1,062	8.06%	2008
Granite Technology Campus	Chicago, IL	03/19/2023	13	$191,618,575	$1,047	7.87%	2008
Timberline Data Campus	Denver, CO	08/04/2023	12	$79,199,477	$433	5.63%	1998
Eastlake Data Center	Columbus, OH	04/07/2023	7	$162,281,939	$887	7.79%	1977
Windmill Data Campus	Raleigh, NC	10/15/2022	6	$196,660,203	$1,075	7.49%	1965
Foxglove Technology Campus	Raleigh, NC	04/28/2026	10	$126,684,632	$692	7.49%	2008
Crestline Data Campus	San Antonio, TX	09/27/2023	11	$172,352,118	$942	7.37%	1988
Gatewood Technology Campus	Raleigh, NC	06/16/2023	7	$177,224,617	$968	6.36%	1976
Elmhurst Data Campus	Phoenix, AZ	02/13/2025	12	$158,515,037	$866	5.51%	2000
Heritage Data Center	Portland, OR	08/12/2026	10	$201,974,977	$1,104	5.36%	1998
Nautilus Technology Campus	Cincinnati, OH	07/30/2025	10	$125,428,714	$685	5.35%	2017
Nautilus Data Center	Greenville, SC	10/05/2024	12	$131,745,549	$720	8.12%	1992
Falcon Technology Campus	Charlotte, NC	12/10/2025	13	$180,735,707	$988	7.68%	2017
Quincy Data Campus	Aurora, CO	09/19/2024	10	$83,084,880	$454	7.07%	1981
Copper Technology Campus	Richmond, VA	08/20/2023	9	$86,453,221	$472	6.67%	2004
Juniper Technology Campus	Hartford, CT	07/15/2023	11	$156,681,501	$856	5.29%	2011
Dunmore Technology Campus	Allentown, PA	04/16/2024	13	$178,617,878	$976	5.04%	2003
Hawthorne Data Center	Des Moines, IA	05/30/2026	6	$139,599,025	$763	6.90%	1991
Ashford Data Campus	Atlanta, GA	07/27/2022	7	$108,133,786	$591	7.06%	1977
Zephyr Technology Campus	Buffalo, NY	11/22/2022	10	$194,057,305	$1,060	5.10%	2014
Newport Technology Campus	Grand Rapids, MI	02/08/2026	5	$122,817,295	$671	5.43%	1985
Eastlake Technology Campus	Dallas, TX	05/05/2024	5	$180,172,641	$985	6.41%	2012
Lakeshore Data Campus	Nashville, TN	06/23/2025	6	$163,555,282	$894	5.26%	2002
Sterling Technology Campus	Norfolk, VA	11/02/2025	10	$183,583,252	$1,003	7.51%	1975
Westgate Technology Campus	Milwaukee, WI	01/24/2026	5	$209,559,554	$1,145	7.48%	1975
Gatewood Technology Campus	Sacramento, CA	03/25/2024	12	$73,551,095	$402	5.93%	1999
Prairie Data Center	Jacksonville, FL	08/24/2022	7	$96,454,995	$527	6.06%	2004
Quincy Technology Campus	Madison, WI	11/07/2022	11	$83,174,489	$455	6.26%	1968
Fairmont Data Center	Dallas, TX	01/29/2025	6	$134,834,555	$737	5.45%	1971
Highland Technology Campus	Omaha, NE	02/11/2023	12	$72,722,877	$397	5.59%	2019
Eastlake Data Campus	Indianapolis, IN	09/18/2024	9	$73,009,412	$399	5.73%	1983
Westgate Technology Campus	New Orleans, LA	12/03/2025	5	$206,344,382	$1,128	5.03%	2013
Timberline Technology Camp	Philadelphia, PA	01/01/2024	9	$131,218,205	$717	6.44%	1978
Thornton Data Campus	Sacramento, CA	03/04/2025	10	$209,018,796	$1,142	5.49%	2020
Birchwood Technology Campu	Jacksonville, FL	04/18/2025	6	$142,468,423	$779	7.34%	1974
Vista Data Campus	Seattle, WA	04/27/2026	8	$147,777,798	$808	5.87%	2016
Ashford Data Campus	Dallas, TX	05/14/2022	5	$167,187,975	$914	7.14%	1984
Eastlake Technology Campus	Orlando, FL	12/03/2022	6	$159,288,578	$870	7.44%	1990
Northgate Data Campus	Buffalo, NY	09/25/2022	13	$146,820,452	$802	6.76%	1968
Valley Technology Campus	Albany, NY	08/04/2024	8	$92,834,724	$507	6.14%	2016
Thornton Technology Campus	Buffalo, NY	03/13/2022	9	$214,701,380	$1,173	8.09%	1998
Elmhurst Technology Campus	Louisville, KY	11/03/2023	8	$157,662,743	$862	7.14%	1998
Garnet Technology Campus	Des Moines, IA	09/20/2024	10	$195,289,057	$1,067	6.89%	2008

Report generated 09/21/2022. Figures are unaudited and subject to change.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Building Systems

The facility is a purpose-built data center with 25 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Carrier-neutral meet-me room supports multiple fiber providers. Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. Calloway Data Campus was originally constructed in 1979 and consists of 182,997 SF in a building of 40 stories. The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter.

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The roof is a 7-year membrane system with an estimated remaining useful life of 7 years. Carrier-neutral meet-me room supports multiple fiber providers.

Financial Analysis

Carrier-neutral meet-me room supports multiple fiber providers. The going-in capitalization rate of 5.19% reflects the in-place income and the stabilized occupancy assumption. The facility is a purpose-built data center with 26 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Net operating income is projected to grow at a compound annual rate of 5.4% over the hold period. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter.

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. The going-in capitalization rate of 5.02% reflects the in-place income and the stabilized occupancy assumption. Operating expenses totaled $433,000 or approximately 22.47 per square foot, with real estate taxes representing the largest line item. A reserve for replacements of $250 per unit has been underwritten in the cash flow below net operating income. Effective gross income for the trailing period was $368,000, representing a 2.2% increase over the prior year.

Construction Details

Calloway Data Campus was originally constructed in 1979 and consists of 182,997 SF in a building of 12 stories. Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. Common area interiors have been refreshed within the last 10 years and are in average to good condition. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The roof is a 40-year membrane system with an estimated remaining useful life of 7 years.

Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Exterior finishes comprise brick veneer, fiber-cement siding and aluminum storefront glazing in good condition. Common area interiors have been refreshed within the last 8 years and are in average to good condition. Calloway Data Campus was originally constructed in 1979 and consists of 182,997 SF in a building of 37 stories. The structure is of wood-frame, masonry and steel-frame construction on a slab-on-grade foundation.

Valuation Discussion

On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. Management fees are calculated at 5.5% of collected revenue and are included in operating expenses. Net operating income is projected to grow at a compound annual rate of 6.0% over the hold period. Debt service coverage ratio was 5.19x on a trailing basis against a covenant minimum of 1.20x. Carrier-neutral meet-me room supports multiple fiber providers. Operating expenses totaled $428,000 or approximately 7.12 per square foot, with real estate taxes representing the largest line item.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Rent Comparables

Comparable	Distance	Yr Built	Space Type	Asking Rent	Occupancy	Concessions
Marlow Data Campus	4.0 mi	1993	Suite	$182.81	94.0%	None
Quincy Technology Campus	0.3 mi	1995	Bay	$159.81	91.7%	None
Marlow Data Campus	4.6 mi	2014	Suite	$185.74	89.9%	$500
Hollis Data Campus	2.2 mi	1985	Suite	$200.59	94.9%	None
Foxglove Data Campus	3.1 mi	1971	1BR	$200.16	92.1%	$500
Windmill Data Center	1.5 mi	1988	Bay	$201.80	87.4%	None
Summit Data Campus	4.7 mi	1981	Bay	$183.08	94.6%	None
Driftwood Data Center	4.0 mi	1983	Suite	$189.82	93.3%	$500
Falcon Data Center	3.7 mi	2009	Unit	$164.18	93.6%	1 mo. free
Elmhurst Data Center	2.9 mi	1995	Studio	$151.02	89.5%	$500
Osprey Technology Campus	4.9 mi	2023	Unit	$184.78	97.3%	None
Osprey Data Center	4.2 mi	2000	Bay	$202.74	91.3%	None
Alder Data Center	2.1 mi	1976	Unit	$191.33	91.7%	$500
Dunmore Data Center	2.7 mi	1981	Bay	$171.33	98.0%	1 mo. free
Maple Data Center	0.7 mi	1994	Suite	$207.23	89.7%	$500
Ridgeline Technology Campus	3.3 mi	2021	Studio	$161.92	86.5%	$500
Marlow Technology Campus	4.1 mi	1971	Bay	$150.25	97.0%	1 mo. free
Pelican Data Campus	3.3 mi	1989	2BR	$190.67	96.3%	$500
Laurel Data Center	3.2 mi	2022	2BR	$175.94	95.9%	1 mo. free
Amberly Technology Campus	2.4 mi	2021	Suite	$174.93	89.5%	None
Marlow Data Campus	4.9 mi	2015	Unit	$188.53	91.1%	$500
Maple Data Campus	4.8 mi	2021	Bay	$174.26	96.3%	None
Falcon Technology Campus	3.2 mi	1994	1BR	$163.63	93.2%	None
Verde Data Campus	0.6 mi	2009	Bay	$205.34	93.9%	$500
Ashford Technology Campus	2.8 mi	1998	Suite	$192.68	86.4%	None
Heritage Technology Campus	1.1 mi	1994	Inline	$149.07	93.7%	None
Whitaker Data Campus	3.4 mi	1996	Unit	$200.23	88.6%	None
Summit Technology Campus	3.2 mi	1973	Studio	$183.26	86.3%	None
Union Data Center	0.9 mi	1988	Studio	$176.63	93.4%	$500
Calloway Data Center	1.9 mi	1987	Bay	$158.42	88.6%	1 mo. free
Alder Data Center	2.8 mi	1989	Studio	$158.69	96.7%	None
Juniper Data Center	2.3 mi	1977	Inline	$207.17	87.4%	None
Eastlake Data Campus	4.2 mi	1992	1BR	$171.60	89.7%	1 mo. free
Aspen Data Campus	1.4 mi	1973	Inline	$163.73	86.0%	None
Cypress Data Center	1.9 mi	2011	Studio	$165.37	89.3%	None
Union Data Center	4.8 mi	2014	Bay	$160.95	97.6%	None
Pelican Data Campus	4.3 mi	1988	1BR	$156.20	86.8%	None
Saddlebrook Data Center	4.8 mi	1987	Unit	$176.65	92.5%	1 mo. free
Cypress Technology Campus	4.5 mi	1997	Unit	$197.42	95.5%	1 mo. free
Eastlake Data Campus	4.8 mi	2013	Unit	$162.72	91.0%	1 mo. free

Report generated 09/21/2022. Figures are unaudited and subject to change.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Management Commentary

Collections for the period were 94.6% of billed charges, with bad debt of 4.0% of gross potential income. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The facility is a purpose-built data center with 17 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. On-site staffing consists of a property manager, assistant manager, maintenance supervisor and 31 additional team members.

Marketing efforts include digital listings, signage, broker outreach and a resident referral program. Preventive maintenance schedules for HVAC, elevators and life-safety systems were completed on time during the period. The manager completes a monthly walk of the property and submits a variance report to the owner by the 46th business day. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost.

Supply and Demand

Rent growth in the submarket has averaged 8.0% annually over the past 7 years. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Employment growth is led by healthcare, logistics, education and professional services sectors. The Albuquerque Data Center market has experienced absorption of 4400 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries.

Median household income within a 7-mile radius of the property is approximately $29,000 and has grown 12.3% annually. Market vacancy for comparable Data Center product stands at 6.5%, down from 7.6% two years ago. The facility is a purpose-built data center with 24 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. The Albuquerque Data Center market has experienced absorption of 1100 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. Employment growth is led by healthcare, logistics, education and professional services sectors.

Management Commentary

Service requests are tracked through a work-order system with an average completion time of 12 hours. On-site staffing consists of a property manager, assistant manager, maintenance supervisor and 16 additional team members. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The manager completes a monthly walk of the property and submits a variance report to the owner by the 9th business day. Carrier-neutral meet-me room supports multiple fiber providers. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost.

Marketing efforts include digital listings, signage, broker outreach and a resident referral program. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Carrier-neutral meet-me room supports multiple fiber providers. The facility is a purpose-built data center with 18 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Collections for the period were 89.2% of billed charges, with bad debt of 3.4% of gross potential income.

Submarket Analysis

Carrier-neutral meet-me room supports multiple fiber providers. Rent growth in the submarket has averaged 6.3% annually over the past 11 years. The Albuquerque Data Center market has experienced absorption of 1200 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries. Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 5.2% population growth over the last five years. The facility is a purpose-built data center with 19 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Risk Considerations

Distributions to investors for the quarter were paid at an annualized rate of 5.2% on contributed capital. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. Projected levered IRR is 10.7% with an equity multiple of 1.25x over the hold period.

Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. Carrier-neutral meet-me room supports multiple fiber providers. Distributions to investors for the quarter were paid at an annualized rate of 5.4% on contributed capital. The facility is a purpose-built data center with 21 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. The business plan contemplates a hold period of 3 years with disposition upon achievement of target returns. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter.

Demographics and Employment

Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 8.9% population growth over the last five years. The facility is a purpose-built data center with 8 MW of critical IT load, N+1 power and cooling redundancy, and dual utility feeds. Employment growth is led by healthcare, logistics, education and professional services sectors. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost. Investor demand for Data Center assets in Albuquerque remains strong with recent trades at capitalization rates between 7.56% and 7.56%. Carrier-neutral meet-me room supports multiple fiber providers.

Employment growth is led by healthcare, logistics, education and professional services sectors. Rent growth in the submarket has averaged 5.3% annually over the past 3 years. Carrier-neutral meet-me room supports multiple fiber providers. Calloway Data Campus is located in Albuquerque, NM, a market that has recorded 12.4% population growth over the last five years. New construction starts have decelerated due to higher financing costs and tighter lending standards, which supports the existing supply. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost.

Investment Overview

On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The investment thesis is based on stabilizing occupancy, completing the capital plan and capturing rent growth to market. Leasing velocity improved during the period and management expects further upward pressure on in-place rents. Distributions to investors for the quarter were paid at an annualized rate of 6.2% on contributed capital.

Carrier-neutral meet-me room supports multiple fiber providers. Key risks include interest rate exposure, tenant rollover, construction cost overruns and local supply additions. Projected levered IRR is 5.2% with an equity multiple of 1.21x over the hold period. Tenants are billed per kilowatt of contracted capacity with power pass-through at metered cost.

Market Overview

Carrier-neutral meet-me room supports multiple fiber providers. Market vacancy for comparable Data Center product stands at 3.3%, down from 7.8% two years ago. Median household income within a 8-mile radius of the property is approximately $82,000 and has grown 5.8% annually. On-site infrastructure includes diesel generators, UPS systems, CRAC units and a biometric-controlled security perimeter. The Albuquerque Data Center market has experienced absorption of 2700 thousand square feet or equivalent units over the trailing twelve months, outpacing new deliveries.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Sales Comparison Data

Comparable	Location	Sale Date	Size	Price	$/Unit or S	Cap Rate	Yr Built
Birchwood Data Center	Orlando, FL	08/11/2022	7	$119,151,790	$651	8.02%	1973
Mesa Data Center	Pittsburgh, PA	12/18/2023	9	$127,004,115	$694	6.15%	1968
Fairmont Data Campus	Orlando, FL	09/17/2025	9	$69,759,897	$381	8.18%	2022
Northgate Data Center	Allentown, PA	05/26/2024	12	$157,333,898	$860	8.11%	2016
Calloway Technology Campus	New Orleans, LA	03/23/2026	7	$158,604,932	$867	6.38%	1977
Verde Technology Campus	Norfolk, VA	06/16/2023	10	$145,489,525	$795	7.15%	1995
Canyon Data Center	Sacramento, CA	08/16/2023	6	$202,135,985	$1,105	6.46%	2010
Cedar Technology Campus	San Antonio, TX	03/18/2024	6	$136,469,105	$746	7.97%	1999
Upland Data Campus	Boise, ID	02/24/2024	7	$119,609,535	$654	6.65%	1974
Maple Data Center	Jacksonville, FL	04/27/2023	6	$115,739,945	$632	5.28%	1967
Kingsley Data Campus	Boston, MA	02/28/2022	10	$103,925,560	$568	6.23%	2002
Beacon Data Center	Omaha, NE	05/18/2023	10	$169,553,863	$927	5.84%	1975
Ironwood Data Center	Allentown, PA	12/23/2023	9	$200,350,578	$1,095	6.07%	2019
Harbor Technology Campus	Riverside, CA	12/24/2022	8	$157,795,067	$862	7.05%	2020
Maple Data Center	Columbus, OH	12/21/2024	12	$208,841,266	$1,141	7.87%	1970
Ashford Data Campus	Albany, NY	12/23/2023	13	$196,068,240	$1,071	6.92%	1982
Pinecrest Technology Campu	Chicago, IL	05/10/2025	10	$87,360,557	$477	6.36%	1968
Kingsley Technology Campus	Riverside, CA	11/09/2025	9	$153,519,074	$839	5.10%	1973
Meridian Data Center	Chicago, IL	01/27/2023	12	$205,393,360	$1,122	6.23%	1980
Heritage Data Campus	Richmond, VA	04/14/2026	11	$213,159,704	$1,165	7.82%	1972
Newport Data Center	Hartford, CT	05/29/2026	7	$144,224,364	$788	5.76%	2014
Osprey Technology Campus	Las Vegas, NV	06/16/2023	6	$179,992,484	$984	7.30%	1990
Valley Data Campus	Sacramento, CA	05/11/2026	11	$158,340,633	$865	6.19%	1991
Ashford Data Center	Charlotte, NC	08/01/2024	7	$165,046,224	$902	7.81%	1971
Ivy Technology Campus	Orlando, FL	02/08/2025	13	$118,660,575	$648	6.59%	2016
Everett Data Center	Allentown, PA	09/25/2025	12	$187,536,219	$1,025	6.20%	1977
Windmill Data Campus	Denver, CO	08/21/2025	13	$72,750,834	$398	7.12%	1978
Cypress Technology Campus	Salt Lake City,	09/23/2024	12	$91,224,811	$499	7.45%	1983
Birchwood Technology Campu	Riverside, CA	07/31/2026	6	$63,098,309	$345	8.00%	2017
Ridgeline Data Campus	Memphis, TN	12/04/2025	6	$120,323,020	$658	8.17%	2023
Newport Data Campus	Aurora, CO	08/29/2022	5	$83,057,903	$454	8.14%	2005
Ridgeline Technology Campu	Birmingham, AL	07/09/2022	7	$210,006,520	$1,148	7.75%	1971
Dover Technology Campus	Hartford, CT	09/03/2025	13	$161,814,218	$884	5.26%	1972
Vista Data Center	St. Louis, MO	05/29/2022	9	$88,412,724	$483	7.56%	2001
Sterling Technology Campus	Dallas, TX	10/23/2025	13	$193,102,566	$1,055	8.03%	2010
Lakeshore Data Center	Portland, OR	07/10/2024	5	$116,934,443	$639	5.69%	2012
Riverbend Technology Campu	San Diego, CA	01/31/2023	13	$192,201,944	$1,050	7.45%	1994
Elmhurst Technology Campus	Memphis, TN	06/04/2025	11	$161,227,690	$881	6.38%	1988
Ridgeline Technology Campu	Madison, WI	10/21/2025	12	$95,765,943	$523	6.93%	2006
Everett Data Center	Louisville, KY	11/19/2022	5	$69,312,206	$379	6.12%	1971
Willow Technology Campus	Richmond, VA	02/26/2024	12	$119,847,469	$655	6.27%	2010
Glenview Data Center	Louisville, KY	04/02/2026	8	$182,635,066	$998	7.85%	2004
Wexford Technology Campus	Greenville, SC	08/28/2025	8	$198,267,893	$1,083	7.76%	2022

Report generated 09/21/2022. Figures are unaudited and subject to change.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only

Disclaimer and Confidentiality

This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Calloway Data Campus and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Calloway Data Campus and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument. This document relates solely to Calloway Data Campus and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This document relates solely to Calloway Data Campus and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. This document relates solely to Calloway Data Campus and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of NM. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This document relates solely to Calloway Data Campus and has been prepared for the use of the recipient only; it may not be reproduced or distributed.

FICTITIOUS SAMPLE DOCUMENT — all names, figures and entities are invented for classroom training use only